



CONFIDENTIALITY, NON-DISCLOSURE, AND NON-SOLICITATION AGREEMENT

THIS CONFIDENTIALITY, NON-DISCLOSURE AND NON-SOLICITATION AGREEMENT ("Confidentiality Agreement"), is made and effective as of the **<(DD/MM/YYYY)>** by and between **COREOPS.AI PRIVATE LIMITED ("COREOPS.AI")** having primary business place at INS701, Tower A, Sector 132, NOIDA, 201304, UP, India and **<(Name of the employee)>, <address of the employee>.**

BACKGROUND

- A. In the course of Contractor's performance of his/her responsibilities for COREOPS.AI and/or any of its affiliates and their respective agents and Contractors, he/she may be provided access to substantial amounts of confidential and proprietary information protected by various private confidentiality and non-disclosure agreements, copyrights, trademarks, patents and other legal requirements.
1. This information may be provided to Contractor by or for COREOPS.AI and/or any of its affiliates and their respective agents and Contractors, its clients, vendors of technology, business goods and services and other individuals and entities.
 2. Additionally, COREOPS.AI and its affiliates and their respective agents and Contractors have developed a confidential and proprietary system for facilitating and managing the outsourcing of certain business and technology processes, functions and assets and for providing other goods and services to its clients. Contractor is granted a limited, non-transferable, non-exclusive license to use this system only during the term of his/her employment by COREOPS.AI and/or any of its affiliates and their respective agents and Contractors and solely for the purpose of performing his/her responsibilities for COREOPS.AI and/or any of its affiliates and their respective agents and Contractors.
 3. COREOPS.AI and/or any its affiliates and their respective agents and Contractors and/or Contractor will be required, in the ordinary course of performing their respective responsibilities to execute certain confidentiality and non-disclosure agreements for the benefit of COREOPS.AI and any its affiliates and their respective agents and Contractors, and its clients, vendors and other providers of goods and services. Pursuant to these agreements, COREOPS.AI and any its affiliates and their respective agents and Contractors could incur substantial liability if Contractor breaches any of his/her responsibilities set forth therein.
- B. The purpose of this Confidentiality Agreement is to document Contractor's understanding of the confidential and proprietary nature of such information, the degree of care that will be exercised by Contractor and Contractor's acknowledgment that he/she is personally responsible for the appropriate care and management of all Confidential Information to which he or she has been made privy and notified that it is subject to a confidentiality agreement in accordance with this

CoreOps.AI Private Limited

CIN U63990HR2024PTC120717

Registered Office: F601 Central Park-1 Sector 42, Gurgaon, Haryana- 122009



Confidentiality Agreement and any other legal requirements applicable to Contractor's use and management of such Confidential Information.

1. In consideration of the mutual covenants set forth herein, the compensation paid to Contractor by COREOPS.AI and/or any its affiliates and their respective agents and Contractors and for other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:
 - a) **Definitions.** For the purposes of this Confidentiality Agreement, which shall be deemed to include each of the statements set forth in the Background section above, the following terms shall have the following meanings:
 - 1) **"Confidential Information"** means all information provided by or for COREOPS.AI, and any of its affiliates and their respective agents and Contractors, its clients and/or their agents to Contractor, in whatever form transmitted -- including, without limitation, written, oral, electronic, automated, audio, video and image formats -- which is proprietary to or maintained under confidentiality by the Owner. Confidential Information includes, without limitation, vendor proposals, pricing, cost models, forms, templates, processes, formulae, diagrams, procedures, methods, techniques, apparatus, listings, reports, software programs, modules, screens, graphic representations, animations, audio and video files and improvements or modifications thereof, whether or not copyright, trademark or patent applications are filed or pending thereon, all client or customer lists or information, rates, dealer or supplier information, commission rates, strategic plans, financial data or information, accounting and control procedures, business methods and the like. Confidential Information also includes the substance of any discussion related to such information. However, Confidential Information does not include information:
 - 1) in, or which becomes part of, the public domain without fault of the Recipient
 - 2) actually and demonstrably known to the Recipient prior to being obtained from the Owner;
 - 3) obtained or acquired by the Recipient in good faith from a third party who possesses the information in good faith and is not subject to an obligation of confidentiality to the Owner.
 - 4) required to be disclosed by law;
 - 5) required to be disclosed pursuant to a final, non-appealable order or decree of a court, agency or other legal or administrative entity of competent jurisdiction; or
 - 6) independently developed by the Recipient without the use of Confidential Information from the Owner.

CoreOps.AI Private Limited

CIN U63990HR2024PTC120717

Registered Office: F601 Central Park-1 Sector 42, Gurgaon, Haryana- 122009



- 2) **"Owner"** of Confidential Information shall mean the entity, including COREOPS.AI and any of its affiliates and their respective agents and Contractors where appropriate, or individual from whom the information originated.
 - 3) **"Party"** means either COREOPS.AI and any of its affiliates and their respective agents and Contractors or Contractor as the context of the provisions set forth herein so requires.
 - 4) **"Parties"** means COREOPS.AI and any of its affiliates and their respective agents and Contractors and Contractor, collectively.
 - 5) **"Recipient"** shall mean the individual or entity to which the information was revealed.
2. **Agreement Not to Disclose; Other Obligations of Contractor.** Contractor agrees that he/she will:
- (a) not disclose or provide to any third party any portion of the Confidential Information without the prior written consent of the Owner, which may be withheld, conditioned or delayed in the Owner's sole discretion;
 - (b) use all reasonable efforts and due diligence to prevent the unauthorized use or disclosure of the Confidential Information;
 - (c) return all material containing the Confidential Information furnished pursuant to this Confidentiality Agreement to COREOPS.AI and/or any of its affiliates and their respective agents and Contractors or the Owner, as directed, promptly upon the request of either COREOPS.AI and/or any of its affiliates and their respective agents and Contractors or the Owner or the termination of Contractor's employment by COREOPS.AI and/or any of its affiliates and their respective agents and Contractors, whichever shall occur first; and
 - (d) promptly advise COREOPS.AI and any of its affiliates and their respective agents and Contractors in writing if Contractor learns of any unauthorized use or disclosure of the Confidential Information and fully cooperate with COREOPS.AI and any its affiliates and their respective agents and Contractors and the Owner to assist the Owner in regaining possession of the Confidential Information and to prevent further unauthorized use or disclosure of the Confidential Information.
3. **Court Ordered Disclosure.** Notwithstanding any provision to the contrary, prior to making any disclosure compelled by a court, agency or other legal or administrative entity of competent jurisdiction in accordance with the provisions set forth herein, Contractor shall first:
- a) assert the privileged and confidential nature of the Confidential Information against the third party seeking disclosure,

CoreOps.AI Private Limited

CIN U63990HR2024PTC120717

Registered Office: F601 Central Park-1 Sector 42, Gurgaon, Haryana- 122009



- b) give COREOPS.AI and any of its affiliates and their respective agents and Contractors and the Owner prior written notice and an opportunity to object to the order or decree; and
- c) cooperate fully with COREOPS.AI and any of its affiliates and their respective agents and Contractors and the Owner in protecting against any such disclosure and/or obtaining a protective order narrowing the scope of such disclosure and/or the use of the Confidential Information to be disclosed.

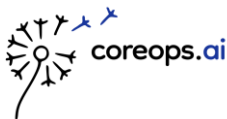
In the event protection against disclosure is not obtained, the Party subject to the order or decree may disclose the Confidential Information only to the extent legally necessary to comply with the order or decree.

- 4. **Rights in Confidential Information.** Contractor does not acquire any rights in the Confidential Information disclosed pursuant to this Confidentiality Agreement.
- 5. **Non-Solicitation.** For a period of one year following the Contractor's termination with COREOPS.AI and/or any of its affiliates and their respective agents and Contractors, Contractor, acting as a director, equity holder, officer, Contractor, employer, principal, agent, manager, consultant, independent contractor, advisor or otherwise, will not:
 - (a) employ or solicit for employment, or advise or recommend to any other person that they employ or solicit for employment, or otherwise materially assist any other person in employing or soliciting for employment, any Contractor of COREOPS.AI and/or any of its affiliates and their respective agents and Contractors; or
 - (b) solicit or encourage any Contractor of COREOPS.AI and/or any of its affiliates and their respective agents and Contractors to leave the employ of COREOPS.AI and/or any of its affiliates and their respective agents and Contractors or to do any act that is disloyal to COREOPS.AI and/or any of its affiliates and their respective agents and Contractors, or is inconsistent with the interests of COREOPS.AI and/or any of its affiliates and their respective agents and Contractors.
- 6. **Remedies.** Contractor acknowledges that a breach of its obligations under this Confidentiality Agreement may cause irreparable harm, for which monetary damages would not provide an adequate remedy. In the event of any actual or threatened violation or breach by Contractor of the provisions of this Confidentiality Agreement, COREOPS.AI and any of its affiliates and their respective agents and Contractors shall be entitled to specific performance of the provisions of this Confidentiality Agreement, and to such further equitable or injunctive relief, including temporary restraining orders or permanent injunctions, as may be granted by a court or other tribunal of competent jurisdiction. Each of the rights and remedies provided in this Confidentiality Agreement shall be cumulative and not exclusive of each other or any other rights or remedies available at law, in equity, or pursuant to this Confidentiality Agreement.
- 7. **Governing Law; Jurisdiction.** This Confidentiality Agreement shall be governed by the laws of India, without giving effect to the principles of choice of law thereof. The Parties consent to sue and be sued in the state and High Court located in the State of Delhi/Haryana and shall not attempt the removal or change of venue of any action arising from or relating to this Confidentiality Agreement to the state or federal courts of another jurisdiction.

CoreOps.AI Private Limited

CIN U63990HR2024PTC120717

Registered Office: F601 Central Park-1 Sector 42, Gurgaon, Haryana- 122009



8. **Entire Agreement; Severability.** This Confidentiality Agreement constitutes the entire agreement between the Parties relating to the subject matter hereof, and supersedes all prior agreements, whether oral or written, with respect thereto. In the event any one or more of the provisions of this Confidentiality Agreement shall be held to be invalid, illegal or unenforceable, the remaining provisions of this Confidentiality Agreement shall be unimpaired and will be enforced to the extent permitted by law, as though the void or unenforceable portions were reformulated, to the extent permitted by law, and replaced by a provision, which, being valid, legal and enforceable, comes closest to the intention of the parties underlying the invalid, illegal, or unenforceable provision.
9. **Amendment; Waiver.** This Confidentiality Agreement shall not be released, discharged, amended or modified in any manner, except by an instrument in writing signed by duly authorized representatives of each of the Parties. No waiver under this Confidentiality Agreement shall be effective unless contained in a writing signed by the Party charged with such waiver, and no waiver of any right arising from any breach or failure to perform shall be deemed to be a waiver of any future such right or any other right arising under this Confidentiality Agreement.
10. **Survival.** Each of the terms, conditions and other provisions of this Confidentiality Agreement shall survive the termination of Contractor's employment to the extent necessary to fulfill each of the purposes contemplated hereby.

IN WITNESS WHEREOF, Contractor executes this Confidentiality Agreement and causes it to be effective as the date first written above.

Agreed to:

Signed for COREOPS.AI PRIVATE LIMITED	Signed for <i>[insert employee's name]</i>
SIGNATURE	SIGNATURE
NAME:	NAME:
DESIGNATION: DIRECTOR	DESIGNATION:
DATE:	DATE:
ADDRESS: INS701, Tower A, Sector 132, NOIDA, 201304, UP, India	ADDRESS:

Employee ID number: <insert>

Agreement number: **<insert>**

CoreOps.AI Private Limited

CIN U63990HR2024PTC120717

Registered Office: F601 Central Park-1 Sector 42, Gurgaon, Haryana- 122009



CoreOps.AI Private Limited

CIN U63990HR2024PTC120717

Registered Office: F601 Central Park-1 Sector 42, Gurgaon, Haryana- 122009